UNITED STATES BANKRUPTCY COURT
NORTHERN DISTRICT OF MISSISSIPPI

IN RE:
Example Debtor, John R. CASE NO. 26-00000-JDW
Debtor. CHAPTER 13

MOTION FOR RELIEF FROM THE AUTOMATIC STAY AND MEMORANDUM BRIEF IN SUPPORT

MOTION

Example Lender, LLC ("Movant"), a secured creditor of the Debtor, moves under 11 U.S.C. § 362(d) and Fed. R. Bankr. P. 4001(a) for relief from the automatic stay, and in support states as follows.

1. The Debtor filed a voluntary petition under Chapter 13 on the petition date shown in the docket. The case is pending in this Court.

2. Movant holds a promissory note from the Debtor in the original principal amount of $85,000, secured by a deed of trust on the Debtor's residence (the "Property").

3. The Debtor has not made the post-petition payments due under the note since the first payment after the petition date.

4. The Movant asserts no equity cushion in the Property. The Property's value is less than the amount owed under the note.

The grounds for relief are:

(a) the Debtor has no equity in the Property, under 11 U.S.C. § 362(d)(2)(A);

(b) the Property is not necessary to an effective reorganization, under 11 U.S.C. § 362(d)(2)(B); and

(c) cause exists under 11 U.S.C. § 362(d)(1) because the Movant's interest is not adequately protected.

MEMORANDUM BRIEF

The Movant files this memorandum under Fed. R. Bankr. P. 9013 in support of the motion.

I. Standard

Under 11 U.S.C. § 362(d), the Court shall grant relief from the stay for cause, or where the debtor lacks equity and the property is not necessary to an effective reorganization. The movant bears the burden on the debtor's lack of equity, and the debtor bears the burden on whether the property is necessary to an effective reorganization.

II. Argument

The Debtor has no equity in the Property. The Debtor's own schedules value the Property below the amount owed under the note, with no junior liens. The Debtor has not offered any valuation to the contrary.

The Property is not necessary to an effective reorganization. The Debtor's plan does not propose to cure the arrearage on the note, and the Debtor has not shown a feasible path to do so within the plan term.

Movant's interest is not adequately protected. The Property is depreciating, and no payments have been made to the Movant since the petition date.

III. Conclusion

For these reasons, the Movant asks the Court to grant the motion.

RELIEF REQUESTED

The Movant respectfully requests that the Court enter an order:

(a) granting relief from the automatic stay under 11 U.S.C. § 362(d) as to the Property;

(b) waiving the fourteen-day stay under Fed. R. Bankr. P. 4001(a)(3); and

(c) granting such other relief as the Court deems just and proper.

CERTIFICATE OF SERVICE

I certify that on the date below I electronically filed this motion with the Clerk of Court using the CM/ECF system, which sent notice to the Chapter 13 trustee, the United States Trustee and counsel for the Debtor, and that I served a copy by United States mail on the Debtor at the address of record.

This the ___ day of _____, 2026.

Respectfully submitted,

FIRM NAME, PLLC

By: *Counsel Name*
One of Its Attorneys

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